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Minerva Mills v Union of India

On 24 April 1973, the Supreme Court made its most significant decision in history. Prime Minister Indira Gandhi enjoyed a majority in Parliament that was large enough for her to have constitutional amendments enacted with ease. An 'iterative game of action–response–rejoinder'[1] was playing out between the Congress government and the Supreme Court. No sooner did the court pass a judgement that was unpalatable to the establishment than the government began exploring methods to nullify it, including through amendments to the Constitution. This battle for custodianship of the Constitution reached a crescendo when a Supreme Court panel of an unprecedented size – thirteen judges – was tasked in the Kesavananda Bharati case with deciding whether there were any limits on Parliament's power to amend the Constitution. The court held, by a narrow majority of seven to six, that Parliament lacked the power to amend the basic structure or essential features of the Constitution.

The Kesavananda case, however, is not the subject of this chapter. This book would not be honest to its title if it were, as this case is etched deeply in the public consciousness. The civics syllabus for some school examinations does not include any case law, with this being the only exception. The Minerva Mills case followed soon after and was arguably as